INDIVIDUAL AND STATE: RIGHTS; DUTIES AND ACCOUNTABILITY

THREE DIRECTIONS -> TWO PICTURES -> WHAT A RIGHT IS -> LOCKE AGAINST BENTHAM -> HOHFELD -> WILL AGAINST INTEREST -> HUMAN RIGHTS -> INDIAN IDIOM -> UNCONDITIONAL RIGHTS -> DUTIES -> GANDHI AND ARTICLE 51A -> CORRELATIVITY AND PRIORITY -> ACCOUNTABILITY -> ARENAS AND TRUMPS -> LIBERAL CONTROLS -> POST-LIBERAL CORRECTIONS -> RADICAL CHALLENGES -> SOCIAL CONTRACT -> PLATO AGAINST ARISTOTLE -> POLITICAL OBLIGATION -> THE LADDER -> ANSWER SPINE

Read the thick rail from Stage 00 to the final synthesis. Each card uses a layout chosen for its own content; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

Approval: FALSE - Pending user review - all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 THE PRINTED CLAUSE AND THE THREE DIRECTIONS OF ONE RELATION

RIGHTS: CLAIM AGAINST
DUTIES: OBLIGATION THROUGH
ACCOUNTABILITY: POWER ANSWERS
COERCION OF THE UNCONSENTING
LICENCE / SUBORDINATION / DOMINATION
POLITICAL OBLIGATION IS THE PRIOR QUESTION
9 OF 112 OWNED PYQ PARTS

INDIVIDUAL CLAIMS -> RIGHTS

INDIVIDUAL OWES -> DUTIES → STATE ANSWERS -> ACCOUNTABILITY

THE PRINTED CLAUSE, VERBATIM

- Syllabus item 3: 'Individual and State : Rights; Duties and Accountability.' Three terms are printed and only three.
- The state is the one association a person neither joins nor may simply leave, and it claims the right to coerce persons who never agreed to be coerced.

ONE RELATION, READ IN THREE DIRECTIONS

- Rights: what may the individual claim AGAINST public power.
- Duties: what does she owe THROUGH social life to others and institutions.
- Accountability: why must power explain, be judged and be corrected.

EACH DEGENERATES ALONE

- Rights without limits become licence; duties without rights become subordination; power without answerability becomes domination.
- Ownership fence: Austin, Bodin, Laski and Kautilya belong to Sovereignty; anarchism and Marxism as ideologies to Political Ideologies; the forms of democracy to Forms of Government; the ideals triad to Social and Political Ideals.

MECHANISM / VERDICT — Rights protect individuality, duties sustain social order and accountability legitimises coercion, so no one of the three can be taught or written in isolation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The state is the one association a person neither joins nor may simply leave, which is exactly why its power must be justified in three directions at once.

01

STAGE 01 MECHANISTIC AGAINST ORGANIC, AND THE SIX RELATION-MODELS

EXPLANATORY PRIORITY
INSTRUMENT OF PRIOR PERSONS
CONSTITUTIVE POLITICAL WHOLE
ATOMISM
STATISM
RIVAL LOGICAL METAPHORS, NOT BIOLOGY
CONSTITUTIONAL DEMOCRACY NEEDS BOTH

MODEL	FREEDOM IS	MAIN DANGER
MECHANISTIC	a protected sphere	atomism
ORGANIC	participation in rational institutions	statism
WELFARE	effective capacity	paternalism
MARXIST	emancipation from material domination	civil liberty
ANARCHIST	voluntary cooperation	coordination deficit
COMMUNITARIAN	situated autonomy	conformity

THE TWO PICTURES

- Mechanistic or artificial: individuals are logically prior, the state is an instrument for security, rights or cooperation, and freedom is a protected sphere. Names: Hobbes, Locke, contractarian liberalism, with sharply different contracts.
- Organic or ethical: the political whole is prior to the fully developed citizen, and rights mature within an ethical order. Names: Aristotle, Hegel.

THE FOUR FURTHER MODELS

- Welfare or positive liberal: instrumental, but must remove social hindrances so that freedom becomes effective capacity.
- Marxist: the class state universalises a partial interest. Anarchist: coercive authority has no demonstrated general right to rule. Communitarian: the self is socially embedded and common goods are not derivable from isolated choice.

EACH RISK, NAMED

- Atomism and hollow formal freedom; statism and silenced conscience; paternalism and dependence; under-protected civil liberty in transition; coordination and security deficits; conformity and silenced internal minorities.

MECHANISM / VERDICT — The distinction concerns logical structure rather than literal biology, so the question is which of person and polity explains the other.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Modern constitutional democracy is mechanistic in insisting institutions serve persons and organic in recognising that citizenship is socially formed.

02

STAGE 02 WHAT A RIGHT IS, AND THE SIX GROUNDS THAT JUSTIFY IT

JUSTIFIED CLAIM
PROTECTED NORMATIVE POSITION
HOLDER / CONTENT / BEARER / GROUND
A NEED IS NOT YET A RIGHT
SIX COMPETING GROUNDS
NAME THE GROUND IN LINE ONE

DESIRE

NEED → INTEREST WORTH PROTECTING → JUSTIFIED CLAIM = A RIGHT

THE DEFINITION AND ITS FOUR DEMANDS

- A right is a justified claim, liberty, power or immunity recognised within a moral or legal order - a protected normative position, not a preference.
- Every right-claim must supply a holder, a content, a bearer and a ground of justification.

THE SIX GROUNDS

- Nature (Locke): rights precede the state. Law (Bentham): claimant, duty-bearer, remedy. Morality: ethical reasoning before enactment.
- Will: normative control over another's duty. Interest: protection of important interests. Dignity: rights belonging to all human beings as human.

THREE OPENING DISTINCTIONS

- A need may be urgent and still not be a right; a liberty is not a claim-right; a moral right may exist without enforcement while a legal right exists within an institutional order.
- Objection: rights-talk is inflated. Reply: Hohfeld supplies the discipline. Residual: the reply fixes form, not content.

MECHANISM / VERDICT — Everyone agrees that a right is a justified claim, so the whole dispute in this clause is about what counts as the justification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A right is not a want with better manners: it is a justified claim, and the justifying ground must be named before anything else is written.

03

STAGE 03 NATURAL, LEGAL AND MORAL RIGHTS: LOCKE AGAINST BENTHAM

PRE-POLITICAL MORAL STANDING
FIDUCIARY TRUST
RESISTANCE ON FORFEITURE
NONSENSE UPON STILTS
CLAIMANT + DUTY-BEARER + REMEDY
LOCKE IS NOT HOBBES
VALIDITY IS NOT LEGITIMACY

LOCKE - THE NATURAL-RIGHTS GROUND

- Rights to life, liberty and property are held in the state of nature; government is a fiduciary trust for their protection; violation of the trust justifies resistance.
- Locke is not Hobbes: Hobbes begins from fear and an irreversible transfer, Locke from a norm-governed state of nature and a revocable trust.

BENTHAM - THE LEGAL GROUND

- Natural rights are 'nonsense upon stilts'. A right exists where an enforceable legal order supplies a claimant, a duty-bearer and a remedy.
- He rejects natural rights, not rights as such. Positivism asks what rights exist in law; moral-rights theory asks what rights ought to exist before law recognises them.

MORAL RIGHTS - THE CRITICAL RESIDUE

- Justified claims grounded in ethical reasoning rather than enactment, which is why anti-slavery and anti-colonial claims were intelligible before legal recognition.
- Objection to Locke: natural rights cannot be empirically shown. Reply: the claim is normative. Objection to Bentham: an oppressive legal system could define injustice as justice. Reply: legal validity and moral legitimacy are not identical.

MECHANISM / VERDICT — Each position is strongest exactly where the other is weakest, and the residue between them is the space that moral rights occupy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Bentham did not deny rights; he denied rights without law, and the reason his challenge cannot be final is that every reformer must be able to say a law violates a right.

04

STAGE 04 HOHFELD'S FOUR INCIDENTS AND THEIR CORRELATIVES

CLAIM-RIGHT
LIBERTY OR PRIVILEGE
POWER
IMMUNITY
ORDINARY RIGHTS ARE BUNDLES
NO GENERAL CLAIM TO A PLATFORM
ANALYTIC, NOT MORAL

INCIDENT	CORRELATIVE	OPPOSITE
CLAIM-RIGHT	DUTY	NO-RIGHT
LIBERTY	NO-RIGHT	DUTY
POWER	LIABILITY	DISABILITY
IMMUNITY	DISABILITY	LIABILITY

THE FOUR INCIDENTS

- Claim-right correlates with duty and is opposed to no-right; liberty correlates with no-right and is opposed to duty.
- Power correlates with liability and is opposed to disability; immunity correlates with disability and is opposed to liability.

BUNDLING - FREEDOM OF SPEECH UNPACKED

- A liberty to speak, a contextual claim-right against censorship, and an immunity against arbitrary alteration of that protection.
- But no general claim-right that others provide a platform, an audience or a press - which is the commonest category mistake in rights writing.

WHY IT DECIDES THE 2025 STEM

- Correlativity is strict for claim-rights and absent for liberties, so the connection is conceptual for one class of rights and institutional for the rest.
- Limit: the scheme is analytic rather than moral; it fixes the form of a right and cannot say which interests deserve protection.

MECHANISM / VERDICT — Most disputes about rights and duties remain merely verbal until the four juridical positions have been separated.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Once a right is resolved into claim, liberty, power and immunity, the question whether rights and duties are necessarily connected becomes answerable rather than rhetorical.

05

STAGE 05 WILL THEORY AGAINST INTEREST THEORY

CONTROL OVER ANOTHER'S DUTY
PROTECTION OF AN INTEREST
THE HOLDER AS SMALL SOVEREIGN
THE INFANT HARD CASE
THE WAIVER HARD CASE
MIXED APPROACH
NO TIE-BREAKING CRITERION

WILL THEORY

- A right is normative control over another's duty; the holder may waive, demand or enforce it, which fits autonomy, consent and contract exactly.
- It asks who controls the duty. Hard case: the infant and the severely disabled cannot control anything, so on a strict reading they hold no rights.

INTEREST THEORY

- A right is the protection of an interest important enough to justify imposing a duty, which explains welfare and protective rights naturally.
- It asks whose interest justifies the duty. Hard case: if the right exists for the holder's benefit, why may a competent adult lawfully waive it?

THE MIXED POSITION

- Mature legal orders treat agency and welfare as two dimensions, with different rights sitting at different points on the spectrum.
- Residual: when agency and interest conflict - paternalist protection against competent refusal - the mixed view still owes a criterion and does not supply one.

MECHANISM / VERDICT — Each theory is refuted on precisely the case where the other is strongest, so the mixed position is a conclusion rather than an evasion.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The dispute is not about what a right is but about what a right is for: control over another's duty, or protection of the interest that justifies the duty.

06

STAGE 06 HUMAN RIGHTS: UNIVERSALITY AGAINST CULTURAL RELATIVISM

COMMON HUMAN ASPIRATION
MINIMUM MORAL HORIZON
CULTURAL-RELATIVIST CHALLENGE
ASPIRATION, NOT ARTICULATION
RELATIONAL READING PERMITTED
THE CORE IS NOT NEGOTIABLE

THE UNIVERSALIST CLAIM

- Certain rights belong to all human beings simply as human beings, grounded in dignity, equal worth and protection against cruelty, arbitrariness and degradation.
- It universalises moral concern beyond citizenship, religion and culture, and presupposes a minimum moral horizon common to humanity.

THE RELATIVIST CHALLENGE

- Conceptions of personhood, community, authority and obligation differ across traditions, and the vocabulary of individual claim-rights is historically particular in its formulation.
- Traditions organised around role, duty and reciprocity may reasonably resist translation into an idiom not their own.

THE BALANCED LINE, AND ITS LIMIT

- Core protections may be universal while institutional expression varies; rights can be read relationally without losing their protective force.
- What may never be conceded is that the critique of cruelty and arbitrary power is itself merely local. Residual: the boundary of the minimum core stays disputed.

MECHANISM / VERDICT — The relativist is right about idiom and institutional form and wrong if the claim extends to the substance of the prohibition itself.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Universality of aspiration does not require uniformity of articulation, because no civilisation has ever succeeded in defending cruelty and degradation as such.

07

STAGE 07 INDIAN TRADITION, DHARMA AND GANDHI'S BRIDGE

ANTAGONISTIC FAILS
IDENTICAL FAILS
A DIFFERENT IDIOM
DHARMA: ROLE, RECIPROCITY, RESTRAINT
RIGHTS AS THE FRUIT OF DUTIES
FILTER AGAINST HIERARCHY
AMBEDKAR'S CAPTURE OBJECTION

FIX THE TEST → STATE THE IDIOM → REFUSE BOTH CARICATURES → NAME THE RISK → SYNTHESIS VERDICT

WHY BOTH CARICATURES FAIL

- To be antagonistic the tradition would have to defend cruelty or deny moral worth, and it does neither.
- To be identical it would have to assert claim-rights against political authority, and it does not.

THE IDIOM, STATED PRECISELY

- Dharma frames the moral order through role-based obligation, reciprocity, self-restraint, truth and order, with the person embedded in a web of relations.
- At its strongest it connotes responsibility, restraint and moral vocation rather than mere obedience - but it must be filtered so as not to sacralise hierarchy.

GANDHI'S BRIDGE AND THE CONCESSION

- Rights grow out of well-performed duties: a thesis about the moral source and social sustainability of rights, not their denial. Duty-first is not hierarchy-first.
- Ambedkar's objection stands: in a society still stratified by caste, duty-first framings can be captured by dominant groups.

MECHANISM / VERDICT — The tradition affirms what the human-rights doctrine protects while reaching it through obligation rather than through claim.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Indian tradition is not antagonistic to individual rights but antecedent to the rights idiom, which can both enrich and complicate rights discourse.

08

STAGE 08 UNCONDITIONAL RIGHTS AND THE COLLISION ARGUMENT

UNCONDITIONAL MEANS NO LIMIT
NECESSARILY IS MODAL
UNRESOLVABLE COLLISION
FOUR BOUNDARY PRINCIPLES
LIMITATION IS NOT NULLIFICATION
EROSION WORRY
SELF-DEFEATING, NOT ANARCHIC

DEFINE BOTH WORDS → COLLISION → BOUNDARY PRINCIPLES → LIMITATION NOT NULLIFICATION → CLOSE ON ACCOUNTABILITY

THE COLLISION

- Rights are claims plural persons must be able to hold simultaneously. If every asserted liberty were absolute, collisions would be unavoidable.
- They would also be unresolvable, because any procedure for resolving them would itself constitute a condition.

THE FOUR BOUNDARY PRINCIPLES

- Others' equal rights; harm constraints; public order; institutional adjudication.
- These are not a denial of rights but the condition of their coexistence, since liberty is plural and socially situated.

THE DECISIVE DISTINCTION AND ITS RESIDUE

- Limiting a right is not nullifying it: a principled limit is reasoned, bounded and reviewable, while an arbitrary one is none of these.
- Objection: admitted limits enable steady erosion. Reply: close on accountability, with each restriction justified, proportionate and reviewable. Residual: where review is captured or unavailable, the objection returns in full.

MECHANISM / VERDICT — The defect is internal to the concept, so the argument does not depend on any empirical prediction of social breakdown.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Unconditional rights do not so much produce anarchy as abolish themselves, since a right admitting no limit destroys the coexistence that made it worth having.

09

STAGE 09 DUTIES: NATURE, KINDS AND WHAT LAW CANNOT CODIFY

DO, AVOID, RESPECT, SUPPORT
LEGAL DUTY
MORAL DUTY
SIX KINDS, NOT ONE
HABITS LAW CANNOT MANUFACTURE
DUTY MUST BIND THE POWERFUL

THE DEFINITION AND THE RANGE

- A duty is an obligation to do, avoid, respect or support something owed to others, institutions, community or oneself.
- Duties may be legal, moral, civic, political, professional or spiritual, and reducing duty to legal duty is an expensive simplification.

THE TWO COLUMNS

- Legal duty rests on law, constitution, statute and procedure, and is enforced by courts, penalties and official sanction.
- Moral duty rests on conscience, ethical reason and social norm, and is enforced by praise, blame, self-judgment and public opinion.

THE CONTROLLING ARGUMENT AND THE DANGER

- A legal order cannot function without compliance, yet no legal order can codify the whole of ethical life, so citizenship rests on tolerance, honesty, restraint and respect for disagreement.
- Duty is regularly invoked by authority to silence dissent, so the test is directional: does the duty-talk bind the powerful as well?

MECHANISM / VERDICT — Law can compel compliance but cannot manufacture the civic habits on which its own operation depends.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Moral duty is not the sentimental margin of this clause but the condition of the legal order's own possibility.

10

STAGE 10 GANDHI'S INVERSION AND ARTICLE 51A

DUTY EDUCATES THE MORAL SELF
SWARAJ AS ETHICAL SELF-RULE
NOT ANTI-RIGHTS
ARTICLE 51A, 1976
NON-JUSTICIABLE
SETTLES NO MORAL THESIS
PARTICIPATORY CITIZENSHIP

I PERFORM DUTIES → THE MORAL SELF IS EDUCATED → RIGHTS BECOME SUSTAINABLE → ARTICLE 51A REGISTERS THE THOUGHT

THE INVERSION

- Gandhi gives duty conceptual priority in social ethics: rights become secure when persons discipline themselves through service, self-restraint and truthfulness.
- Freedom requires swaraj, self-rule in the ethical sense, and not merely external non-interference.

WHAT GANDHI IS NOT SAYING

- He is not saying rights are dispensable; he is neither a hard legal positivist nor an atomistic liberal.
- He is neither anti-state in the simple sense nor pro-statist in the centralising sense: the position is moralised citizenship with decentralised responsibility.

THE CONSTITUTIONAL REGISTER

- Article 51A was inserted by the Constitution (Forty-second Amendment) Act, 1976, and Fundamental Duties are non-justiciable.
- Read philosophically it balances rights-bearing with responsibility-bearing citizenship, but non-justiciability is a legal fact that settles no moral thesis.

MECHANISM / VERDICT — Duty-language becomes state-sponsored moralism the moment it is used to evade accountability or to suppress legitimate dissent.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Rights sustained only by sanction last as long as the sanction, whereas rights sustained by internalised obligation survive its absence.

11

STAGE 11 CORRELATIVITY AND PRIORITY: THE TWO DECIDING STEMS

PREMISE SOUND, INFERENCE INVALID
DISTINGUISHABLE, NOT SEPARABLE
STRICT FOR CLAIM-RIGHTS
ABSENT FOR LIBERTIES
ETHICAL AGAINST POLITICAL PRIORITY
EMPHASIS, NOT PRECEDENCE
NAME THE CRITERION FIRST

2025 - THE MODAL QUESTION

- Concede the premise: obligation and entitlement are analytically distinguishable, which is why we have two words.
- Refuse the inference: distinguishability does not entail the absence of a necessary connection, and Hohfeld shows the connection is strict for claim-rights and absent for liberties.

THE CONSEQUENCES

- Entitlements without correlative obligations remain empty; obligations without any corresponding claims risk authoritarianism.
- The concepts are analytically distinguishable but not socially separable.

2023 - THE PRIORITY QUESTION

- Rights-first shields minorities but risks atomised entitlement; duty-first stresses responsibility but risks paternalism; the balanced view fits constitutional democracy but requires vigilance.
- Accountability is the term that prevents a duty-first answer from collapsing into subordination: if power must answer, asking citizens for duty is not submission.

MECHANISM / VERDICT — Ranking without a criterion is assertion, and balance without a criterion is a longer assertion.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Duty may hold ethical priority in motivating conduct while rights retain political priority in protecting persons against abuse.

12

STAGE 12 ACCOUNTABILITY: THE ARGUMENT AND THE THREE DIMENSIONS

EXPLAIN, JUSTIFY, BEAR CONSEQUENCES
AUTHORITY TO LEGITIMACY
ANSWERABILITY
ENFORCEABILITY
RESPONSIVENESS
NOT EFFICIENCY
WIDER THAN ELECTIONS

THE STATE COERCES

THE COERCED DID NOT CONSENT → THEREFORE IT MUST ANSWER → OTHERWISE IT IS DOMINATION

WHY POWER MUST ANSWER

- The state claims coercive authority over persons who did not individually consent, so its acts must be answerable to them.
- Otherwise the claim is indistinguishable from domination; accountable power can be defended as public trust.

THE THREE DIMENSIONS AND THEIR FAILURE MODES

- Answerability requires information and public justification; isolated, explanation without correction becomes ritual.
- Enforceability requires review, remedy, sanction or removal; isolated, punishment without reason-giving becomes arbitrary. Responsiveness requires changed conduct and institutional learning; isolated, correction lacks prospective rules.

TWO NEGATIONS

- Accountability is not efficiency: a state may be efficient yet unaccountable.
- It does not contradict finality: finality attaches to closing a dispute, accountability to how the closing power is exercised. Residual: the terminal forum's own accountability remains the hardest unsolved problem.

MECHANISM / VERDICT — The official must answer, an authorised forum must judge, and an effective remedy or correction must remain possible.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Accountability does not deny that someone must decide last; it denies that anyone may decide last without answering for it.

13

STAGE 13 THREE ARENAS, DWORKIN'S TRUMPS, AND THE 2019 VERDICT

POLITICAL ARENA
LEGAL ARENA
MORAL ARENA
RULES APPLY, PRINCIPLES WEIGH
RIGHTS AS TRUMPS
RECIPROCAL, NOT ONE-DIRECTIONAL
RELATIONAL, NOT FEUDAL

ARENA	TO WHOM	THROUGH WHAT
POLITICAL	the people	representation, opposition, publicity
LEGAL	law and courts	grievance, review, redress
MORAL	conscience and history	criticism and public judgment

THE THREE ARENAS

- Political answerability to the people is not reducible to periodic voting: it includes opposition, deliberation, publicity and criticism.
- Legal answerability runs through grievance, review and redress, and a legally wrongful act does not become right because it is electorally supported. Moral answerability holds because legality does not exhaust legitimacy.

DWORKIN, TAKING RIGHTS SERIOUSLY, 1977

- Rules apply all-or-nothing; principles have weight and survive being outweighed. Rules rest on pedigree, principles on the argument that best justifies the practice.
- Illustration: no one may profit from his own wrong, so the murderer is denied the inheritance a valid will conferred, without the rule being invalid. Residual: the right-answer thesis is hard to sustain under reasonable disagreement.

THE 2019 VERDICT

- The authoritarian reading makes rights concessions carrying obedience as their price; the democratic reading embeds both parties in mutual answerability.
- Citizens are accountable for law-abiding conduct, participation and respect for others' rights; the state is accountable for freedom, equality and dignity.

MECHANISM / VERDICT — If rights are trumps against collective goals, then a court holding the state to a principle is exercising accountability rather than settling a dispute.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Rights do not make the citizen answerable to the state; they make citizen and state answerable to each other under a common constitutional standard.

14

STAGE 14 THE LIBERAL MODEL AND ITS FOUR INTERNAL CONTROLS

INDIVIDUAL MORALLY PRIOR
NEGATIVE AND POSITIVE FREEDOM
HARM PRINCIPLE
SOFT AGAINST HARD PATERNALISM
NEUTRALITY AGAINST PERFECTIONISM
PRIVACY CANNOT IMMUNISE HARM
BURDEN-OF-PROOF TEST

THE CORE CLAIM

- The individual is morally prior and the state is instrumentally justified because it secures rights, liberty and peaceful coexistence.
- Legitimacy depends on consent, limitation and respect for agency, since persons are ends in themselves.

TWO FREEDOMS, HARM AND PATERNALISM

- Negative freedom is a protected sphere; positive freedom is effective capacity, which justifies education, health or a social minimum without directing life.
- Mill's harm principle makes coercion of a competent adult presumptively justified only to prevent harm to others. Soft paternalism checks whether a choice is informed and voluntary; hard paternalism overrides one that is.

NEUTRALITY, PERFECTIONISM AND THE CONTROLS

- Neutrality secures fair terms without imposing one comprehensive ideal; perfectionism permits public cultivation of genuine goods.
- Controls: promotion must stay rights-bound and contestable, privacy protects autonomy but cannot immunise harm or domination, and dissenters must retain equal civic standing.

MECHANISM / VERDICT — The self-and-other harm boundary is porous, so the harm principle functions as a burden-of-proof test rather than a claim of social isolation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Liberalism does not claim that the state is unnecessary but that it is answerable, and its three tests keep the instrument from becoming a tutor.

15

STAGE 15 IDEALIST, WELFARE AND COMMUNITARIAN CORRECTIONS

ETHICAL LIFE
REMEDIABLE HINDRANCES
CONDITIONAL OBLIGATION
HOLLOW FORMAL RIGHTS
THE EMBEDDED SELF
COERCION AS LIBERATION
NEUTRALITY PRIVILEGES THE CHOOSER

HEGEL AND GREEN, KEPT APART

- Hegel: the rational state belongs to ethical life differentiated into family, civil society and political institutions, and freedom becomes concrete through recognised rights - not the claim that every existing government is entitled to obedience.
- Green: the state is a means to the common good whose work is to remove remediable hindrances while leaving moral agency with citizens, so obligation is conditional.

WELFARE AND COMMUNITARIAN

- Formal rights are hollow where poverty, illness, ignorance or dependency makes choice unusable, so a social minimum and fair opportunity are justified. Limit: provision can become paternalistic and dependency-producing.
- Persons are embedded in histories and practices, and common goods are not derivable from isolated choice. Limit: tradition can conceal hierarchy and community can silence internal minorities.

THE TWO-WAY EXCHANGE

- Liberal reply: liberalism need not equal atomism, since neutrality can protect fair cooperation among socially embedded persons.
- Communitarian rejoinder: neutrality itself privileges an autonomous chooser and depends on solidarities that rights alone cannot generate. Objection to idealism: once the state defines the higher self, coercion can be presented as liberation.

MECHANISM / VERDICT — All three models correct the pre-social chooser and then diverge on what follows, so each is best assessed by the danger a given proposal actually risks.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The chooser of liberal theory is produced rather than merely presupposed, and that single correction generates the idealist, welfare and communitarian alternatives.

16

STAGE 16 THE RADICAL CHALLENGES: ANARCHIST AND MARXIST

LEGITIMACY OF COERCION
CLASS FORM OF RIGHTS
JUSTIFY, DO NOT ASSUME
FORMALLY EQUAL, MATERIALLY UNEQUAL
NOT ADVOCACY OF CHAOS
NOT A DENIAL OF ALL RIGHTS
BURDEN OF PROOF SHIFTS

THE ANARCHIST CHALLENGE

- If persons are capable of voluntary cooperation, mutual aid and local self-organisation, the state may appear as institutionalised domination.
- Philosophical anarchism need not endorse chaos: it doubts political obligation or advocates decentralised association. Unanswered objection: large-scale rights security, adjudication and external defence.

THE MARXIST CHALLENGE

- Liberal rights can protect private property and formal equality while leaving exploitation intact, and the state claims universality while functioning through class power.
- It does not simply deny all rights: it criticises bourgeois-rights frameworks as formal, abstract and compatible with deep inequality. Unanswered objection: civil liberty during transition.

WHAT EACH CONTRIBUTES

- The anarchist shifts the burden of proof onto the state, which is what generates the whole apparatus of political obligation.
- The Marxist shows that rights require material conditions, which bridges to the welfare correction and to the reciprocal-accountability answer.

MECHANISM / VERDICT — The two attack different components of the relation, so merging them weakens both arguments at once.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Rights remain indispensable while their meaningful exercise depends on material conditions, and coercion must be justified rather than assumed.

17

STAGE 17 SOCIAL CONTRACT: DEVELOPMENT AND THE ADEQUACY TEST

IRREVERSIBLE TRANSFER
FIDUCIARY TRUST
GENERAL WILL
STANDPOINT OF INDIVIDUALS
NORMATIVE, NOT HISTORICAL
POWERFUL BUT INCOMPLETE
NON-SIGNATORIES EXCLUDED

HOBBES: TRANSFER FOR PEACE → LOCKE: TRUST, LIMITS, RESISTANCE → ROUSSEAU: SOVEREIGNTY RELOCATED IN THE GENERAL WILL → TEST AGAINST UNIVERSALITY BEYOND CONSENT

WHAT EACH THINKER CHANGES

- Hobbes: insecurity and fear yield peace through a broad and irreversible transfer to a strong sovereign.
- Locke adds trust, limits and a right of resistance on forfeiture; Rousseau relocates sovereignty in the general will, so obedience becomes self-legislation.

THE COMMON AIM AND THE FICTION OBJECTION

- Political obligation must arise from the standpoint of individuals rather than from divine right or mere conquest.
- No actual historical contract occurred, but the theory's value is normative: what terms of rule could free and equal persons reasonably accept?

THE 2021 ADEQUACY TEST

- Benchmark: human rights aspire to universality beyond citizenship and consent.
- The family struggles with persons outside the contract, future generations, and those lacking bargaining power - so contract explains political legitimacy while human rights also require a theory of dignity or personhood.

MECHANISM / VERDICT — Development means what each successor alters, so three biographies in sequence answer a different question from the one the paper sets.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Social contract theory secularises the origin of the state, and it grounds rights in agreement, which is exactly why agreement cannot reach those who were never party to it.

18

STAGE 18 PLATO AGAINST ARISTOTLE ON STATISM AND INDIVIDUALISM

INTERMEDIATE SPHERE
FUNCTIONAL HARMONY
A POLIS IS A PLURALITY
EXCESSIVE UNITY REJECTED
BOTH ARE PERFECTIONISTS
SLAVERY AND EXCLUSION REMAIN
COMPARATIVE, NOT LIBERAL

AXIS	PLATO	ARISTOTLE
UNITY	guardians lose property and family	criticises excessive unity
HOUSEHOLD	subordinated to political unity	household and property remain
CITIZEN	proper function in the ordered city	activity in a differentiated constitution
LIMIT	hierarchy and philosopher-rule	slavery and exclusion

PLATO

- The Republic makes justice functional harmony under philosopher-rule, with the person's good specified through proper function in the ordered city.
- To prevent faction the guardian class gives up private property and the private family, so the private domain is subordinated to political unity.

ARISTOTLE

- The polis is natural and exists for the good life, yet he criticises excessive unity directly: a polis is a plurality, not one household or one person.
- Household and private property remain, though their use should serve common purposes, and citizenship is activity within a differentiated constitution.

THE VERDICT IN TWO HALVES

- Aristotle preserves the intermediate sphere and relates rather than absorbs person and polis, so the stem's comparison is sound.
- But both remain perfectionists, and slavery, the exclusion of women and restricted citizenship block any unqualified modern endorsement.

MECHANISM / VERDICT — A middle course is measured by whether an intermediate sphere survives between the person and the political whole.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Aristotle defeats Plato's excessive unity without becoming an individualist, so his success is comparative rather than liberal.

19

STAGE 19 POLITICAL OBLIGATION: FOUR TESTS AND SIX FAMILIES

BECAUSE IT IS THE LAW
GENERALITY
PARTICULARITY
CONTENT-INDEPENDENCE
DEFEASIBILITY
FREE-RIDING ON A NON-EXCLUDABLE GOOD
SIMMONS IS NOT RAZ

FAMILY	ANCHOR	FAILURE
CONSENT	Locke, Hobbes, Rousseau	tacit consent is not voluntary
FAIR PLAY	Hart, Rawls	benefits are non-excludable
NATURAL DUTY	Rawls	fails particularity
ASSOCIATIVE	Dworkin, communitarians	mere membership
GRATITUDE	duty-based frameworks	an oppressor can claim it
ANTI-OBLIGATION	Wolff, Simmons	no account of legitimacy

WHAT IT IS AND IS NOT

- A moral duty to obey the law of one's own state because it is the law - not fear, since a gunman also produces obedience and that is being obliged rather than having an obligation.
- Not agreement with content, since then the law would add nothing to my reasons; and not legal validity, which is a separate jurisprudential question.

THE SIX FAMILIES AND THEIR FAILURES

- Consent: express consent is almost never given and tacit consent from residence is not voluntary. Fair play: public order is non-excludable, so benefits are received rather than accepted. Natural duty of justice: fails particularity.
- Associative: mere membership however unjust. Gratitude: some reciprocity but not general obedience, and an oppressor can claim it. Anti-obligation: cannot distinguish a legitimate state from a private agency.

ATTRIBUTION CONTROL

- Simmons is the canonical modern sceptic: the standard grounds fail to bind all and only the members of a particular state.
- Raz supplies the service conception: authority is legitimate when its directives help subjects conform better to reasons that already apply, functioning as pre-emptive reasons. Never swap the two.

MECHANISM / VERDICT — The sceptical conclusion denies a general and content-independent duty while leaving most particular laws independently binding.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The question is never simply whether one must obey, but on what ground, binding whom, and defeated by what.

20

STAGE 20 THE DISOBEDIENCE LADDER AND THE DATED ANCHORS

CONSCIENTIOUS OBJECTION
CIVIL DISOBEDIENCE
RESISTANCE
REVOLUTION
PUBLICITY AND ACCEPTANCE OF PENALTY
THOREAU 1849 IS NOT GANDHI 1930
GRAMMAR OF ANARCHY, 25 NOV 1949

THOREAU 1849 → GANDHI 6 APRIL 1930 → AMBEDKAR 25 NOVEMBER 1949 → ARTICLE 51A INSERTED 1976

FOUR RUNGS, NOT FOUR SYNONYMS

- Conscientious objection avoids personal complicity, may be private, seeks exemption and typically accepts the penalty. Civil disobedience is essentially public, breaches a specific law and accepts the legal consequences.
- Resistance obstructs a grave particular injustice, may be covert and may refuse the penalty. Revolution replaces the constitutional order wholesale.

THE DEFINING FEATURES

- Publicity with appeal to shared principles, and acceptance of the legal penalty, which is what shows the actor contests one law rather than repudiating law as such.
- Non-violence is the standard third condition, and on the Gandhian account it is constitutive because means and ends are inseparable.

THE THREE DATED ANCHORS

- Thoreau, Civil Disobedience, 1849: individual conscientious refusal, not an organised mass campaign. Gandhi: the salt law was broken on 6 April 1930 after a march begun in March 1930, publicly and with acceptance of arrest.
- Ambedkar, Constituent Assembly concluding address, 25 November 1949: where constitutional methods are available, unconstitutional methods are the grammar of anarchy. They disagree about whether channels are genuinely open to the group.

MECHANISM / VERDICT — Articles 19(1)(a) and 19(1)(b) protect protest subject to reasonable restrictions and not law-breaking, so legal permission is never moral justification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Once obligation is admitted to be defeasible the answer is not a licence to disobey but a ladder whose rungs answer to progressively heavier burdens of justification.

21

STAGE 21 TRAPS, PYQ ROUTES AND THE EIGHT-MOVE ANSWER SPINE

NAME THE DIRECTION FIRST
OBJECTION, REPLY, RESIDUAL
ONE DATED INDIAN ILLUSTRATION
GRADED VERDICT
9 OWNED PARTS, 2018 TO 2025
EIGHTEEN STANDING TRAPS

THE EIGHT-MOVE SPINE

- Name the direction the stem tests; define with exact vocabulary; give the strongest case as premises; give the strongest rival in its best form.
- Run one or two objection-reply-residual chains; deploy one structure as the spine; add one dated Indian illustration with the legal-status caution; close with a graded verdict conceding what the losing side secures.

THE NINE OWNED PYQ ROUTES

- 2018 Q4(a) aspiration against articulation; 2019 Q2(a) reciprocal accountability; 2020 Q2(c) the antecedent idiom; 2021 Q4(c) the adequacy benchmark; 2022 Q4(b) the collision and its boundary principles.
- 2023 Q2(b) the priority criterion; 2024 Q1(b) contract as a sequence of changes; 2024 Q3(a) the intermediate sphere; 2025 Q4(c) the Hohfeldian split.

THE TRAPS THAT COST MARKS

- Bentham read as rejecting all rights; correlativity asserted for liberties; Gandhi written as anti-rights; accountability reduced to elections; limitation equated with destruction; Hobbes, Locke and Rousseau merged.
- Hegel presented as defending every actual state; Aristotle called a modern individualist; the four rungs merged; Simmons and Raz swapped; Article 51A mis-dated or used as moral proof; another owner's material imported.

MECHANISM / VERDICT — A mature polity does not choose between rights and duties: it constitutionalises rights, cultivates duties and institutionalises accountability.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The individual is neither an atom outside society nor an expendable part of the state, and the task is to specify a justified relation between dignity and authority.

E

EXTRA OPTIONAL ADVANCED DEPTH - ENRICHMENT ONLY

OBLIGATION RESIDUE
CHOICE AGAINST PROTECTION
PHILOSOPHICAL ANARCHISM
ANSWERABILITY AGAINST SANCTION
ASSOCIATIVE HIERARCHY OBJECTION

SECOND-ORDER DEBATES

- The residue of political obligation after promotion: philosophical anarchism's denial that any general obligation exists, and the fair-play against consent priority dispute.
- Rights as choice against rights as protection; accountability as answerability against accountability as enforceable sanction.

THE STRONGEST ADDITIONAL OBJECTION AND REPLY

- Objection: associative or duty-first accounts can legitimise inherited hierarchy by calling obedience belonging.
- Reply: duties are defensible only where the association itself is consistent with equal dignity and public justification; otherwise duty-talk becomes ideological cover for domination.

OPTIONAL STATUS — This block is enrichment for one added debate or one sharper objection and is unnecessary for a competent core answer.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels